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PLAINTIFF'S MOTIONS TO COMPEL FURTHER DISCOVERY RESPONSES

The

Court is granting Plaintiff Stephanie Renee DeMarco's ("DeMarco") motions for orders compelling Defendant Inter-con Security Systems, Inc. ("Inter-con") to provide supplemental responses to Special Interrogatories ("SROGs") and Requests for Production of Documents ("RFPs") that DeMarco propounded on Inter-Con.

Inter-con's

provision of supplemental responses to the SROGs and RFPs to DeMarco on June 24, 2026, the same day that Inter-con filed its oppositions to the Plaintiff's motions, did not render the motions moot.

For

one, the supplemental responses that Inter-con provided to DeMarco contained objections. Inter-con waived its objections, however. That is because the initial responses to the SROGs and RFPs that Inter-con provided to Plaintiff, which consisted of only objections, were untimely. Per the parties' agreement, the initial responses were due on May 4, 2026. Inter-con did not provide its initial responses to the DeMarco until May 18, 2026. Given its waiver of objections, Inter-con must provide supplemental responses to the SROGS and RFPs that are shorn of the objections and that comply with the Code of Civil Procedure's requirements.

Additionally,

Inter-con's provision of supplemental responses to the SROGs and RFPs on June

24, 2026 did not moot Plaintiff's request in the motion for an order imposing monetary sanctions against Inter-con in the form of the attorney's fees that DeMarco incurred in connection with the motions.

It was not until DeMarco filed her motions that Inter-con provided supplemental responses. DeMarco thus is entitled to the sanctions award it seeks, unless Inter-con's position with respect to the SROGs and RFPs was substantially justified or it would be unjust to impose sanctions.

Inter-con's initial responses to the SROG and RFPs, consisting entirely of objections, lacked substantial justification. Inter-con objected to each SROG and RFP on the ground that DeMarco's action against Defendant should be arbitrated. However, Inter-con made this objection nearly a month after the Court denied Inter-con's motion to compel arbitration of DeMarco's action. At that point, there was no substantial justification for interposing the objection.

Yes, Inter-con has appealed the Court's order denying its motion to compel arbitration. But Inter-con could have provided substantive responses to the SROGs and RFPs without waiving its argument on appeal that DeMarco's claims should be arbitrated. The other objections that Inter-con interposed in its initial responses were the same uniform, boilerplate objections to every single SROG and RFP.

There was no substantial justification for those reflexive, undifferentiated objections, which largely were invalid to boot. Further, based on the record before the Court, the imposition of monetary sanctions against Inter-con would not, in the Court's view, result in an injustice to Inter-con. The equities here lie with DeMarco.

Finally, the Court finds that the amount of monetary sanctions that DeMarco seeks in connection with her two motions, which is \$5,010 for each motion, is reasonable. The billing rate of DeMarco's counsel who worked on the motions, \$825 per hour, is reasonable given the Court's familiarity with billing rates for lawyers with counsel's experience in the Los Angeles County market. Additionally, the number of hours that counsel declares he spent in connection with the motions strikes the Court as reasonable given the nature of the issues bound up in the motions.

All

told, Inter-con must provide Code-complaint responses to the SROGs and RFPs, without objection, by July 24, 2026. The sanctions that the Court is imposing on Inter-con must be paid to DeMarco by September 21, 2026.

DEFENDANT'S MOTIONS FOR RELIEF FROM WAIVER OF ITS OBJECTIONS

As indicated above, Inter-con waived the objections it made in the initial responses to the SROGs and RFPs because the responses were untimely – they were provided to DeMarco two weeks beyond the deadline to which the parties agreed. Inter-con has filed motions for relief from the waiver of its objections as to both the SROGs and the RFPs. The Court is denying Inter-con's motions.

or a party to obtain relief from its waiver of objections to another party's discovery requests due to belated provision of responses to the requests, the party must show that it has provided a response that substantially complies with Code of Civil Procedure requirements and that its failure to provide timely responses was the result of mistake, inadvertence, or excusable neglect. Even if the supplemental responses to the SROGs and RFPs that Inter-con provided to DeMarco on June 24, 2026 substantially comply with the requirements of the Code of Civil Procedure, Inter-con has failed to demonstrate that its late initial responses on May 18, 2026 was the result of mistake, inadvertence, or excusable neglect. Inter-con contends in its motions that it missed the May 4, 2026 deadline because of a calendaring error. But the record before the Court does not support that explanation. Rather, based on the communications between counsel for both sides contained in that record, it seems to the Court that Inter-con's counsel was aware of the deadline, missed it because it was busy on other matters, then promised to provide the initial responses by the week of May 11, 2026, but missed the deadline too. This is not the stuff of mistake, inadvertence, or excusable neglect that gives rise to relief from waiver of objections.